

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Date Filed:

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RHONDAYA JOHNSON,

Plaintiff,

Plaintiff designates KINGS
County as the place of trial.

-against-

The basis of venue is
Plaintiff's residence.

CITY OF NEW YORK, DETECTIVE STEVEN M.
TATER, POLICE OFFICER JOHN DOE, A FICTITIOUS
NAME FOR A PARTNER OF DETECTIVE TATER
ON 2/25/2023,

SUMMONS

Defendants.

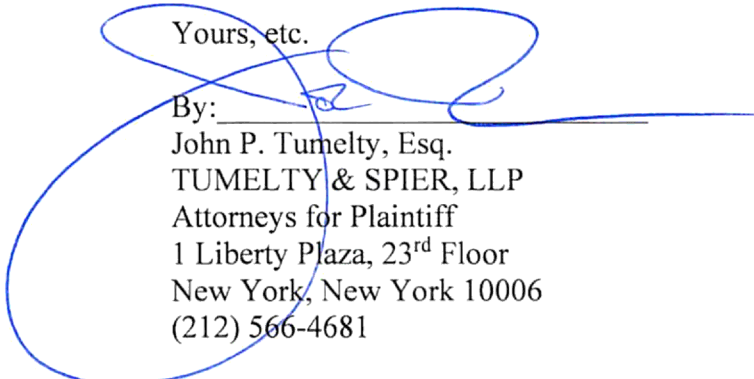
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To the above-named defendant:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
February 7, 2024

Yours, etc.

By: 
John P. Tumelty, Esq.
TUMELTY & SPIER, LLP
Attorneys for Plaintiff
1 Liberty Plaza, 23rd Floor
New York, New York 10006
(212) 566-4681

PLAINTIFF'S ADDRESS:

RHONDAYA JOHNSON
2960 West 29th Street, Apt 3A
Brooklyn, New York 11224

DEFENDANTS' ADDRESSES:

CITY OF NEW YORK

C/O

CORPORATION COUNSEL

100 Church Street

New York, New York 10007

DETECTIVE STEVEN M. TATAR

60th Police Precinct

2951 West 8th Street

Brooklyn, New York 11224

POLICE OFFICER JOHN DOE

A FICTITIOUS

NAME FOR A PARTNER OF DETECTIVE TATER

ON 2/25/2023,

c/o

60th Police Precinct

2951 West 8th Street

Brooklyn, New York 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RHONDAYA JOHNSON,,

Index No.:

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

CITY OF NEW YORK, DETECTIVE STEVEN M.
TATER, POLICE OFFICER JOHN DOE, A FICTITIOUS
NAME FOR A PARTNER OF DETECTIVE TATER
ON 2/25/2023,

Defendants.

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Plaintiff, by her attorneys **TUMELTY & SPIER, LLP**, complaining of the Defendants,
hereby asserts and alleges upon information and belief, as follows:

Jurisdiction

1. Plaintiff **RHONDAYA JOHNSON** at all times pertinent was and still is an adult resident of Kings County, City and State of New York.
2. That at all times pertinent Defendant **CITY OF NEW YORK** was and is a municipal corporation formed and existing under the laws of the State of New York.
3. That at all times pertinent the New York City Police Department is a department of the Defendant **CITY OF NEW YORK**,
4. That at all times pertinent Defendant **DETECTIVE STEVEN M. TATAR ("TATAR")** was and is adult resident of the State of New York.
5. That at all times pertinent Defendant **POLICE OFFICER JOHN DOE, A FICTITIOUS NAME FOR A PARTNER OF DETECTIVE TATER ON 2/25/2023 ("P.O. JOHN DOE")** was and is an adult resident of the State of New York.
6. That at all times pertinent Defendant **TATAR** was and is an employee of the New York City Police Department and Defendant **CITY OF NEW YORK**.

7. That at all times pertinent Defendant **P.O. JOHN DOE** was and is an employee of the New York City Police Department and Defendant **CITY OF NEW YORK**.
8. That at all times pertinent Defendants **TATAR** and **P.O. JOHN DOE** were acting under color of law as New York City Police Officers.
9. That within ninety days of the occurrence a Notice of Claim was filed with Defendant **CITY OF NEW YORK** regarding the claims herein.
10. That on October 3, 2023 a hearing of Plaintiff pursuant to General Municipal Law 50-H was held by Defendant **CITY OF NEW YORK**.
11. That over thirty days have passed since that hearing and this claim has not be settled or adjudicated.
12. That this action is commenced within one year and ninety days of the occurrence.
13. That on **February 25, 2022** at approximately **10:30 pm**, Defendant **TATAR** and **P.O. JOHN DOE** were working as police officers within the confines of the 60th Police Precinct.
14. That on that date and time Defendant **TATAR** was a police officer with Shield number 21004.
15. That at some point subsequent thereto Defendant **TATAR** was promoted to Detective with Shield number 7747.
16. That on the above referenced time and date, Defendant **TATAR** and Defendant **P.O. JOHN DOE** were working in an unmarked police vehicle, with a third police officer, also currently unidentified.
17. That at Mermaid Avenue near its intersection with 33rd Street in Brooklyn, New York the Defendants **TATAR** and **P.O. JOHN DOE** and a third police officer, pulled over the car in which Plaintiff was riding as a passenger.
18. That at that time and place the driver of Plaintiff's vehicle was arrested for a traffic violation.

19. That at that time Plaintiff identified herself of the owner of the stopped vehicle and was in possession of the registration and insurance for the vehicle.
20. That Defendant **TATAR** requested consent to search the vehicle.
21. That Plaintiff and the driver of Plaintiff's vehicle refused consent to search the vehicle.
22. That Defendant **TATAR** got upset at the refusal and entered the Plaintiff's car and drove Plaintiff's car away from that location to the 60th Precinct.
23. That Plaintiff was left standing on the sidewalk without her vehicle.
24. That Plaintiff went to the 60 Precinct by foot.
25. After Plaintiff's arrival at the 60th Precinct a police officer drove the Plaintiff's vehicle to the front of the police station, left the door open, and walked away.
26. Plaintiff observed that the trunk and the inside of the vehicle had been searched and items had been moved and were strewn about the vehicle.
27. That the Defendants' seizing and searching of the Plaintiff's vehicle was part of a practice and policy of the New York City Police Department.
28. That the seizure and search of Plaintiff's vehicle without cause and without a warrant was unreasonable under the constitution.
29. That the unlawful seizure and search was ratified by the 60th Precinct commanders who allowed and permitted such unlawful conduct to occur without stopping or correcting these practices.
30. That the vehicle was taken in violation of Plaintiff's rights under the United States Constitution and New York State Constitution to be free from unlawful seizures.
31. That Claims are made for deprivation of Plaintiff's rights under the Federal Constitution and statutory rights under color of State Law and pursuant to Fourteenth Amendment and 42 USC §1983.
32. That the Defendant **CITY OF NEW YORK** is vicariously responsible for the acts and

omissions of its employees, here the named Defendants, performed during and in the course of their duties with Defendant **CITY OF NEW YORK**.

33. That Defendant **CITY OF NEW YORK** is independently responsible under 42 USC 1983 for an official policy and governmental custom causing permitting and allowing such widespread and persistent unlawful seizures and searches of personal property by members of the New York City Police Department, and its deliberate indifference in training its employees which is a proximate cause here of the violation of Plaintiff's Fourth Amendment rights.

34. That Plaintiff sustained damages due to the unlawful seizure and search of her vehicle.

WHEREFORE, Plaintiff **RHONDAYA JOHNSON** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all the lower courts on each cause of action, together with the costs and disbursements of this action.

Dated: New York, New York
February 7, 2024

Yours, etc.,

Tumelty & Spier, LLP

By John Tumelty, Esq.
Attorneys for Plaintiff
1 Liberty Plaza, 23rd Floor
New York, New York 10006
(212) 566-4681

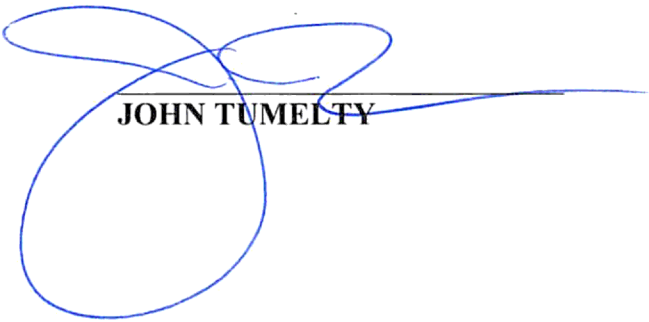
ATTORNEY VERIFICATION

JOHN TUMELTY, an attorney duly admitted to practice in the Courts of the State of New York, affirms that I am the attorney for the Plaintiff herein; I have read the foregoing Complaint and know the contents thereof, the same is true as alleged on information and belief, and as to those matters, I believe them to be true. The reason this verification is made by me and not by the Plaintiff is because the Plaintiff resides outside of the county in which this affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are investigation, interviews, filed documents and the contents of the file maintained by this office

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
February 7, 2024


JOHN TUMELTY